

26PR00365 Estate of Miguel Felix

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-09-15

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of Miguel Felix

Case Number

26PR00365

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 09/15/2026 - 09:00

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

Appearances required.

The following must be submitted:

Proof of Service of Notice of Hearing (Form DE-121). Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 8100 & 8110.) Notice must be sent to the person, not the person's representative. (§1220.) No such document was filed.

Duties and Liabilities Acknowledgement (Form DE-147). The proposed personal representative must fill out and sign this form and submit it to the court. (Prob. Code, § 8404.) No such form was submitted.

Waivers of Bond. Since there is no original will on file, bond must be waived by all adult heirs at law. Petitioner must file bond waivers (Form DE-142) for all heirs or devisees named in a will.

Trust Instrument. The Petition and accompanying documents reveal the existence of a trust. A copy of the trust, and all accompanying amendments, must be submitted for review, to ensure compliance with the Decedent's testamentary intent and notice to individuals who might otherwise not be given notice. (Local Rule, 1791(c).)

Original Will or Petition for Custodian to Deliver Original Will. An original will and any codicil to that will must be lodged with the Court. (Prob. Code, §§ 8200, et seq.) It is insufficient to attach a copy of the will to the petition without lodging the original.

Since petitioner alleges the original will is either destroyed or withheld by the person in possession of the will (i.e. "custodian"), petitioner must bring a separate petition against the custodian of the will in order to produce the will. (See Prob. Code, § 8201.)

Proposed Order (Form DE-140). A proposed order must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

Proposed Letters (Form DE-150). Proposed letters must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

If the documents curing these deficiencies are not processed by 8:00 a.m. on September 14, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James Rigali

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